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ORDINANCE NO. 2026-_____

AN ORDINANCE AMENDING CHAPTER 14 OF THE CITY CODE OF THE CITY OF AMERICUS BY ADOPTING A NEW ARTICLE X ENTITILED "DATA CENTERS" FOR THE PURPOSE OF ESTABLISHING PROCEDURES, RULES, AND REGULATIONS GOVERNING PERSONS, FIRMS, BUSINESSES, COMPANIES, AND CORPORATIONS ENGAGED IN THE DEVELOPMENT OF DATA CENTERS AND THEIR OPERATIONS IN THE CITY LIMITS OF THE CITY OF AMERICUS; TO PROVIDE FOR ENFORCEMENT AND REMEDIES FOR VIOLATIONS OF THIS ORDINANCE; AND FOR OTHER PURPOSES.

WHEREAS, the Mayor and City Council of the City of Americus have determined that protecting the public health, safety and welfare of City residents is paramount concern, and that establishing clear standards and requirements for data centers is necessary to ensure that protection; and

WHEREAS, the purpose of this ordinance is to facilitate the construction, installation, and operation of Data Centers in the City of Americus in a manner that promotes economic development and ensures the protection of health, safety, and welfare while also avoiding adverse impacts to important areas such as agricultural lands, conservation lands, residential areas, and other sensitive lands. This ordinance is not intended to abridge safety, health, or environmental requirements contained in other applicable codes, standards, or ordinances.

NOW, THEREFORE, BE IT ORDAINED by the Mayor and City Council of the City of Americus, Georgia, in a meeting duly assembled, and it is hereby ordained by the authority of same to amend the Code of Ordinances as follows:

Section 1. Chapter 14 of the City Code of the City of Americus is amended by adding a new Article X entitled "Data Centers" as follows:

Article X – Data Centers

Sec. 14-400 Purpose and Intent.

The purpose of this article is to establish definitions and criteria for the issuance of building permits relating to data centers as properly zoned and approved in accordance with the Zoning Ordinance of the City of Americus, to set standards that protect the public health, safety and welfare of the citizens of the City, and to mitigate potential adverse impacts on natural resources, infrastructure, and adjacent land uses, including but not limited to water supply, electrical grid capacity, noise, and environmental quality. This ordinance is not intended to abridge safety, health, or environmental requirements contained in other applicable codes, standards, or ordinances. By enacting this article, it is the intent of the Mayor and City Council to facilitate the orderly development of data centers as an economic driver, providing jobs, tax revenue, and technological infrastructure, while ensuring that such facilities are sited, designed, and operated in

a manner compatible with the rural and community character of the City of Americus. This article draws upon best practices for sustainable data center operations, including energy and water efficient metrics, and aligns with proposed Georgia Department of Community Affairs rules for Development of Regional Impact (DRI) standards, which require disclosure of energy and water demands for facilities exceeding 300,000 square feet in urban/suburban areas or 500,000 square feet in rural areas.

Sec. 14-401 Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Code Enforcement Officer means any person contracted with or employed by a state, county, or municipality who has enforcement authority for health, safety, or welfare requirements and is authorized to issue citations or file formal complaints regarding the same, per O.C.G.A. § 36-74-21(1).

Closed loop system. A thermal management approach where a coolant – typically water-glycol mixtures or dielectric fluids – circulates through sealed piping to absorb heat from IP equipment and then transfers it to external heat exchangers or radiators without exposure to the atmosphere. Unlike open-loop or evaporative systems, the fluid is reused continuously, eliminating the need for constant water replenishment and reducing dependency on local water sources.

Data Center means a facility that houses computing and networking equipment along with storage and management systems to support the storage processing and distribution of digital data and applications. A data center typically features high performance servers, storage arrays, networking equipment, cooling systems and power backup, solutions to ensure uninterrupted operation. Server rooms or similar IT operations that are subordinate to a primary use are not included in this definition.

Sec. 14-402 Applicability.

a. This article shall apply to all planned data centers as well as all data centers installed, constructed, or substantially modified (defined as an expansion increasing floor area by 50% or more) after the effective date of this article.

b. All data centers shall be designed, erected, and installed in compliance with applicable local state, and federal laws, codes, regulations, and standards.

Sec. 14-403 Use Regulations.

Accessory Uses shall be permits in accordance with the standards provided in the Zoning Code of the City of Americus.

Sec. 14-404 Design.

a. All principal and accessory structures shall be arranged, designed, and constructed to harmonize with the site and surrounding properties. Structures should have an earth tone exterior finish. Prefabricates, pre-engineered, or modular structures are permitted subject to the following:

1. All structures shall have permanent concrete foundations.
2. Use of shipping containers, railroad cars, semi-truck trailers, or similar temporary storage units is prohibited, except on construction site during construction.

b. All required construction, site, storm drainage, utility services, transportation, or other development plans shall be submitted for review and approval, as provided herein. All such plans shall articulate, including but not limited to, all setbacks, buffers, lighting, fencing, and other requirements listed herein and in the Zoning Code of the City of Americus.

Sec. 14-405 Architectural and Design Standards.

a. Air conditioning units, HVAC systems, and electrical generators shall be thoroughly screened from view and noise impact from the public right-of-way and from adjacent properties by using walls, fencing, roof elements, or landscaping, and shall be located not less than one hundred (100) feet from adjacent property lines.

b. The front building façade of all principal buildings shall be oriented toward street fronts or adjacent arterial street fronts. This requirement shall not apply if the front of the building is not visible from the public right-of-way.

c. Security fencing and walls shall not be located within the required buffer. Fences and walls outside the required setback and buffer provided above shall not be subject to height limitations. Guard houses and secured entry features shall be permitted at public road entrances. If chain link fending is used, it shall not be visible from adjoining rights-of-way. Barbed and razor wire fending shall not be permitted. Decorative fencing is encouraged.

Sec. 14-406 Private Roads.

Private roads are permitted within the Data Center development. They shall be designed and built subject to the design guidelines for city public roads, unless otherwise approved by the City.

Sec. 14-407 Data Center Sound Requirements.

In order to ensure that permitted uses in the Data Center development do not contribute to noise pollution within the City, all permitted uses shall be subject to the following standards:

a. An acoustic barrier (e.g., an exterior solid or louvered wall containing soundproofing materials) shall surround all exterior mechanical equipment, whether located on a rooftop, on ground level, or elsewhere on the exterior of the of the property where necessary to

achieve the sound level requirements above. Such acoustic barrier must be shown on the approved site plan and shall be maintained on the premises of the Data Center for the operational life of the facility.

Sec. 14-408 Water Usage, Treatment and Sewer System.

a. Prior to approval of a site plan for a Data Center project the applicant shall submit to the City an analysis of raw water needs, including an indication of the quantity of water required for approval.

b. Evaporative cooling systems requiring any water replacement in excess of ten percent of system capacity within any twelve month period are not permitted in the City of Americus. Closed-loop cooling systems or its equivalent, shall be required for operational cooling, limiting its water consummation in order to protect local water resources and preserve long-term water availability for residents, agriculture and existing industry. Alternative cooling methods may be permitted only by a variance approved upon demonstration by the applicant that such methods achieve water conservation, efficiency, and environmental protection, as determined by the governing authority and applicable regulatory agencies. Any approved alternative cooling method must minimize water consumption, protect local water resources, and comply with all federal, state, and local environmental regulations, including but not limited to, applicable Georgia Environmental Protection Division and U.S. Environmental Protection Agency standards.

c. Before permit approval is provided, all data centers shall submit a hydrogeologic study conducted by an independent third-party engineering firm showing estimated annual water usage. Such report should compare estimated ware usage to the prior owner/user of the subject property or of that of similar surrounding areas.

d. The applicant will submit plans for Water Treatment, Discharge and use of the City of Americus Water and Sewer System to the City of Americus Building Risk Management Department for approval and obtain approval by the Georgia Department of Natural Resources: Environmental Protection Division, and the Georgia Department of Health, as applicable. The developer/owner shall use the City of Americus Water and Sewer Systems and any expenses arising from obtaining access to the City of Americus Water and Sewer Systems shall be the sole responsibility of the developer/owner.

Sec. 14-409 Electric Supply.

a. Prior to the City's approval of a permit for a Data Center project, the applicant for a Data Center development shall provide to the City a letter from Georgia Power or an alternative power supplier confirming capacity and willingness to serve the project.

b. Location, structural, and design plans of electrical service lines and substation(s) shall be subject to review and approval.

Sec. 14-410 Electrical and Energy.

a. All exterior site and building lighting shall utilize Dark-Sky complaint (or equivalent) full cutoff, fully shielded (zero uplight) fixtures designed to maintain the existing night sky darkness and to prevent light trespass onto adjacent properties and streets, light fixtures shall be located at least four (4) times the mounting height of the fixture away from adjacent property lines. The mounting height of all site lighting shall not exceed twenty (20) feet above finished grade.

b. Maximum foot-candles at the property line shall be 0.5. All exterior lighting shall be positioned so as not to create glare to any adjacent property or public street.

Sec. 14-411 Retention of Expert Assistance and Reimbursement by Applicant.

a. The City of Americus may hire any consultant and/or expert necessary to assist the City in reviewing and evaluating the Application, including the construction and modification of the site, once permitted, and any site inspections.

b. To prevent the taxpayers from having to bear the cost related to the issue of the regulation of Data Center Facilities, an Applicant shall deposit with the City of Americus funds sufficient to reimburse the City for all reasonable costs of: (i) consulting and expert evaluation and consultation with the City or the Applicant in connection with the submission and/or review of any Application; (ii) any lease negotiations, the prior approval evaluation, and including the construction and modification of the site, once permitted. The initial deposit shall be greater of $25,000.00 or $2,500.00 per mega-watt hour consumption. The placement of the initial deposit with the City shall precede the pre-application meeting or any work being done as regard to processing an application. The City will maintain a separate escrow account for all such funds. The City's consultants/experts shall invoice the City for its services in reviewing the Application, including the construction and modification of the site, once permitted. If at any time during the process this escrow account has a balance less than one third of the initial deposit sum, the Applicant shall immediately, upon notification by the City, replenish said escrow account so that it has a balance of not less than two thirds of the initial deposit sum is maintained in escrow. Such additional escrow funds shall be deposited with the City before any further action or consideration is taken on the Application. In the event that the amount held in escrow is more than the amount of the actual invoicing at the conclusion of the project, the remaining balance shall be promptly refunded to the Applicant upon written request.

c. To prevent the taxpayers from having to bear any cost related to the issue of the regulation of Data Center Facilities, no work shall be done on an application for which the full amount of the escrow deposit as set forth in the preceding, subsection (b) of this section has not been placed with the City. in the event the escrow deposit minimum balance as set forth in this subsection (b) is not maintained, all work on the Application shall cease until the deposit is replenished as required.

d. The total amount of the funds needed as set forth in subsection (b) of this section may vary with the scope and complexity of the project, the completeness of the Application, necessary discussions with the Applicant and other information as may be needed to complete the

necessary review, analysis and inspection of any construction or modification, upon approval by the City Code Enforcement Officer.

e. Records of all outside costs associated with the review and permitting process shall be maintained and available for public inspection, in compliance with applicable Georgia law in the City of Americus Code Enforcement Department.

Sec. 14-412 Application, Permit Fee and Approval.

No permits will be issued without final approval from the Building Risk Management Department, City of Americus Fire Marshall, to determine that all requirements of this ordinance of the City are met including, but not limited to, Fire Safety and Building Codes, the City of Americus Zoning Code, and State and Federal rules and regulations..

Sec. 14-413 Variances.

a. The Mayor and City Council of the City of Americus shall hear and decide appeals where there is alleged error in any order, requirements, decision, or determination made by the enforcement of this Ordinance.

b. The Mayor and City Council may authorize in specific cases such hardship variances from the terms of this Ordinance as will not in its opinion be contrary to the public interest, where, owing to special conditions, a literal enforcement of the provisions of this Ordinance will in an individual case result in unnecessary hardship, so that the spirit of the Ordinance will be observed, public safety and welfare secured. Such variance may be granted in such individual case of unnecessary hardship upon a finding by the Council that:

1. There are extraordinary and exceptional conditions pertaining to the particular piece of property in question because of its size, shape or topography; and
2. The application of this Ordinance to that particular piece of property would create an unnecessary hardship; and
3. Such conditions are peculiar to the particular piece of property involved; and
4. Relief, if granted, would not cause substantial detriment to the public interest or impair the purposes and intent of this ordinance; provided, however, that no variance may be granted for a use of land or building which use is prohibited by this Ordinance.

Sec. 14-414 Violations, Compliance and Enforcement.

a. Facilities shall be subject to reasonable inspection by the City or its authorized agents, at such times and intervals as determined by the City to verify compliance with this article and sections.

b. Violation of any provision constitutes an infraction; each day or incident shall be deemed a separate infraction.

c. City Code Enforcement Officer, or its designated agent or any other law enforcement officer, may issue warnings or citations.

d. Penalties: Fine up to $1,000 per day for each continuing infraction, with other relief consistent with Georgia law.

e. Injunctive relief may be sought against the offending party to prevent continuing violations or infractions, as provided by law.

Section 2. If any sentence, clause, section, or part of this Ordinance is for any reason found to be unconstitutional, illegal, or invalid, such unconstitutionality, illegality, or invalidity shall not affect or impair any part of the remaining provisions, sentences, clauses, sections, or parts of this Ordinance. It is hereby declared as the intent of the Mayor and City Council of the City of Americus that this Ordinance would have been adopted had such unconstitutional, illegal, or invalid sentence, clause, section, or part thereof had not been included herein.

Section 3. This Ordinance shall apply to all Data Center Plans submitted on or after the effective date.

Section 4. This ordinance shall become effective upon approval after second reading.

Section 5. All ordinances or parts of ordinances in conflict herewith are repealed.

SO ORDAINED, this 22nd day of October, 2026.

CITY OF AMERICUS

By: _____
Mayor, Travis Rush

Attest: _____
City Clerk,

(SEAL)

First Reading: _____
Second Reading: _____